

STATE OF NEW YORK

4857--B

Cal. No. 1024

2025-2026 Regular Sessions

IN SENATE

February 13, 2025

Introduced by Sens. SKOUFIS, HOYLMAN-SIGAL, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Ethics and Internal Governance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public officers law and the executive law, in relation to the annual statement of financial disclosure and the posting of financial disclosure filings for candidates for statewide elected office or candidates for a member of the legislature

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (k) of subdivision 2 of section 73-a of the
2 public officers law, as amended by section 7 of part QQ of chapter 56 of
3 the laws of 2022, is amended to read as follows:
4 (k) The commission on ethics and lobbying in government shall post for
5 at least five years beginning for filings made on January first, two
6 thousand thirteen the annual statement of financial disclosure and any
7 amendments filed by each person subject to the reporting requirements of
8 this subdivision who is an elected official, candidate for statewide
9 elected office or candidate for a member of the legislature, on its
10 website for public review within thirty days of its receipt of such
11 statement or within ten days of its receipt of such amendment that
12 reflects any corrections of deficiencies identified by the commission or
13 by the reporting individual after the reporting individual's initial
14 filing. Except upon an individual determination by the commission that
15 certain information may be deleted from a reporting individual's annual
16 statement of financial disclosure, none of the information in the state-
17 ment posted on the commission's website shall be otherwise deleted.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02129-04-5

§ 2. Paragraph (b) of subdivision 13 of section 94 of the executive law, as added by section 2 of part QQ of chapter 56 of the laws of 2022, is amended to read as follows:

(b) The commission shall post on its website the following documents:

(i) the information set forth in an annual statement of financial disclosure filed pursuant to section seventy-three-a of the public officers law except information deleted pursuant to paragraph (g) of subdivision nine of this section of statewide elected officials and members of the legislature, and candidates for statewide elected office and members of the legislature;

(ii) notices of delinquency sent under subdivision nine of this section;

(iii) notices of civil assessments imposed under this section which shall include a description of the nature of the alleged wrongdoing, the procedural history of the complaint, the findings and determinations made by the commission, and any sanction imposed;

(iv) the terms of any settlement or compromise of a complaint or referral which includes a fine, penalty or other remedy;

(v) those required to be held or maintained publicly available pursuant to article one-A of the legislative law; and

(vi) reports issued by the commission pursuant to this section.

§ 3. Paragraph (f) of subdivision 1 of section 73-a of the public officers law, as amended by section 5 of part A of chapter 399 of the laws of 2011, is amended to read as follows:

(f) The term "relative" shall mean such individual's spouse, domestic partner, child, stepchild, stepparent, or any person who is a direct descendant of the grandparents of the reporting individual or of the reporting individual's spouse.

§ 4. Paragraph 8 of subdivision 3 of section 73-a of the public officers law, as amended by section 18, subparagraphs (b), (b-2), and (c) as separately amended by section 8 of part QQ of chapter 56 of the laws of 2012, is amended to read as follows:

8. (a) If the reporting individual practices law, is licensed by the department of state as a real estate broker or agent or practices a profession licensed by the department of education, or works as a member or employee of a firm required to register pursuant to section one-e of the legislative law as a lobbyist, describe the services rendered for which compensation was paid including a general description of the principal subject areas of matters undertaken by such individual and principal duties performed. Specifically state whether the reporting individual provides services directly to clients. Additionally, if such an individual practices with a firm or corporation and is a partner or shareholder of the firm or corporation, give a general description of principal subject areas of matters undertaken by such firm or corporation.

~~(b) [APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON~~

~~OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN:~~

~~If the reporting individual personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), then identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or his or her firm earned fees in excess of \$10,000 during the reporting period for such services rendered in direct connection with:~~

~~(i) A contract in an amount totaling \$50,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$25,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.~~

~~For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or knowingly solicit or direct to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in subparagraphs (i) through (iv) of this paragraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while lawfully acting pursuant to paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.~~

~~The disclosure requirement in this question shall not require disclosure of clients or customers receiving medical or dental services, mental health services, residential real estate brokering services, or insurance brokering services from the reporting individual or his or her firm. The reporting individual need not identify any client to whom he or she or his or her firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, or domestic relations matters. With respect to clients represented in other matters, where disclosure of a client's identity is likely to cause harm, the reporting individual shall request an exemption from the commission on ethics and lobbying in government pursuant to section ninety-four of the executive law, provided, however, that a reporting individual who first enters public office after July first, two thousand twelve, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

~~Client _____ Nature of Services Provided~~

~~_____

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~~(b-1) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOU-~~

~~SAND FIFTEEN~~] (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):

If the reporting individual receives income from employment reportable in question 8(a) and personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), the reporting individual shall identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or ~~his or her~~ their firm earned fees in excess of \$10,000 during the reporting period in direct connection with:

(i) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;

(ii) A grant of \$10,000 or more from the state or any state agency during the reporting period;

(iii) A grant obtained through a legislative initiative during the reporting period; or

(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.

For such services rendered by the reporting individual directly to each such client, describe each matter that was the subject of such representation, the services actually provided and the payment received. For payments received from clients referred to the firm by the reporting individual, if the reporting individual directly received a referral fee or fees for such referral, identify the client and the payment so received.

For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or having knowingly solicited or directed to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in clauses (i) through (iv) of this subparagraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while lawfully acting in ~~his or her~~ their capacity as provided in paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.

Client	Matter	Nature of Services Provided	Category of Amount (in Table I)
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~~[(b-2) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN]~~ (b-1) (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):

(i) With respect to reporting individuals who receive ten thousand dollars or more from employment or activity reportable under question

8(a), for each client or customer NOT otherwise disclosed or exempted in question 8 or 13, disclose the name of each client or customer known to the reporting individual to whom the reporting individual provided services: (A) who paid the reporting individual in excess of five thousand dollars for such services; or (B) who had been billed with the knowledge of the reporting individual in excess of five thousand dollars by the firm or other entity named in question 8(a) for the reporting individual's services.

Client	Services Actually Provided	Category of Amount (in Table I)
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FOLLOWING IS AN ILLUSTRATIVE, NON-EXCLUSIVE LIST OF EXAMPLES OF DESCRIPTIONS OF "SERVICES ACTUALLY PROVIDED":

- * REVIEWED DOCUMENTS AND CORRESPONDENCE;
- * REPRESENTED CLIENT (IDENTIFY CLIENT BY NAME) IN LEGAL PROCEEDING;
- * PROVIDED LEGAL ADVICE ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- * CONSULTED WITH CLIENT OR CONSULTED WITH LAW PARTNERS/ASSOCIATES/MEMBERS OF FIRM ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- * PREPARED CERTIFIED FINANCIAL STATEMENT FOR CLIENT (IDENTIFY CLIENT BY NAME);
- * REFERRED INDIVIDUAL OR ENTITY (IDENTIFY CLIENT BY NAME) FOR REPRESENTATION OR CONSULTATION;
- * COMMERCIAL BROKERING SERVICES (IDENTIFY CUSTOMER BY NAME);
- * PREPARED CERTIFIED ARCHITECTURAL OR ENGINEERING RENDERINGS FOR CLIENT (IDENTIFY CUSTOMER BY NAME);
- * COURT APPOINTED GUARDIAN OR EVALUATOR (IDENTIFY COURT NOT CLIENT).

(ii) With respect to reporting individuals who disclosed in question 8(a) that the reporting individual did not provide services to a client but provided services to a firm or business, identify the category of amount received for providing such services and describe the services rendered.

Services Actually Provided	Category of Amount (Table I)
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A reporting individual need not disclose activities performed while lawfully acting in [~~his or her~~] their capacity as provided in paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.

The disclosure requirement in [~~questions (b-1) and (b-2)~~] question (b-1) shall not require disclosing clients or customers receiving medical, pharmaceutical or dental services, mental health services, or residential real estate brokering services from the reporting individual or [~~his or her~~] their firm or if federal law prohibits or limits disclosure. The reporting individual need not identify any client to whom [~~he or she~~] they or [~~his or her~~] their firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, family court, estate planning, or domestic relations matters, nor shall the reporting individual identify individuals represented pursuant to an insurance policy but the reporting individual shall in such circumstances only report the entity that provides compensation

1 to the reporting individual; with respect to matters in which the
2 client's name is required by law to be kept confidential (such as
3 matters governed by the family court act) or in matters in which the
4 reporting individual represents or provides services to minors, the
5 client's name may be replaced with initials. To the extent that the
6 reporting individual, or ~~[his or her]~~ their firm, provided legal repre-
7 sentation with respect to an initial public offering, and professional
8 disciplinary rules, federal law or regulations restrict the disclosure
9 of information relating to such work, the reporting individual shall (i)
10 disclose the identity of the client and the services provided relating
11 to the initial public offering to the office of court administration,
12 who will maintain such information confidentially in a locked box; and
13 (ii) include in ~~[his or her]~~ their response to ~~[questions (b-1) and~~
14 ~~(b-2)]~~ question (b-1) that pursuant to this paragraph, a disclosure to
15 the office of court administration has been made. Upon such time that
16 the disclosure of information maintained in the locked box is no longer
17 restricted by professional disciplinary rules, federal law or regu-
18 lation, the reporting individual shall disclose such information in an
19 amended disclosure statement in response to the disclosure requirements
20 in ~~[questions (b-1) and (b-2)]~~ question (b-1). The office of court
21 administration shall develop and maintain a secure portal through which
22 information submitted to it pursuant to this paragraph can be safely and
23 confidentially stored. With respect to clients represented in other
24 matters not otherwise exempt, the reporting individual may request an
25 exemption to publicly disclosing the name of that client from the
26 commission on ethics and lobbying in government pursuant to section
27 ninety-four of the executive law, or from the office of court adminis-
28 tration. In such application, the reporting individual shall state the
29 following: "My client is not currently receiving my services or seeking
30 my services in connection with:

31 (i) A proposed bill or resolution in the senate or assembly during the
32 reporting period;

33 (ii) A contract in an amount totaling \$10,000 or more from the state
34 or any state agency for services, materials, or property;

35 (iii) A grant of \$10,000 or more from the state or any state agency
36 during the reporting period;

37 (iv) A grant obtained through a legislative initiative during the
38 reporting period; or

39 (v) A case, proceeding, application or other matter that is not a
40 ministerial matter before a state agency during the reporting period."

41 In reviewing the request for an exemption, the commission on ethics
42 and lobbying in government or the office of court administration may
43 consult with bar or other professional associations and the legislative
44 ethics commission for individuals subject to its jurisdiction and may
45 consider the rules of professional conduct. In making its determination,
46 the commission on ethics and lobbying in government or the office of
47 court administration shall conduct its own inquiry and shall consider
48 factors including, but not limited to: (i) the nature and the size of
49 the client; (ii) whether the client has any business before the state;
50 and if so, how significant the business is; and whether the client has
51 any particularized interest in pending legislation and if so how signif-
52 icant the interest is; (iii) whether disclosure may reveal trade
53 secrets; (iv) whether disclosure could reasonably result in retaliation
54 against the client; (v) whether disclosure may cause undue harm to the
55 client; (vi) whether disclosure may result in undue harm to the attor-

1 ney-client relationship; and (vii) whether disclosure may result in an
2 unnecessary invasion of privacy to the client.

3 The commission on ethics and lobbying in government or, as the case
4 may be, the office of court administration shall promptly make a final
5 determination in response to such request, which shall include an expla-
6 nation for its determination. The office of court administration shall
7 issue its final determination within three days of receiving the
8 request. Notwithstanding any other provision of law or any professional
9 disciplinary rule to the contrary, the disclosure of the identity of any
10 client or customer in response to this question shall not constitute
11 professional misconduct or a ground for disciplinary action of any kind,
12 or form the basis for any civil or criminal cause of action or proceed-
13 ing. A reporting individual who first enters public office after January
14 first, two thousand sixteen, need not report clients or customers with
15 respect to matters for which the reporting individual or [~~his or her~~
16 ~~their~~ firm was retained prior to entering public office.

17 (c) [~~APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE~~
18 ~~PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR~~
19 ~~NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE~~
20 ~~SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOU-~~
21 ~~SAND FIFTEEN+]~~

22 If the reporting individual receives income of ten thousand dollars or
23 greater from any employment or activity reportable under question 8(a),
24 identify each registered lobbyist who has directly referred to such
25 individual a client who was successfully referred to the reporting indi-
26 vidual's business and from whom the reporting individual or firm
27 received a fee for services in excess of five thousand dollars. Report
28 only those referrals that were made to a reporting individual by direct
29 communication from a person known to such reporting individual to be a
30 registered lobbyist at the time the referral is made. With respect to
31 each such referral, the reporting individual shall identify the client,
32 the registered lobbyist who has made the referral, the category of value
33 of the compensation received and a general description of the type of
34 matter so referred. A reporting individual need not disclose activities
35 performed while lawfully acting pursuant to paragraphs (c), (d), (e) and
36 (f) of subdivision seven of section seventy-three of this article. The
37 disclosure requirements in this question shall not require disclosing
38 clients or customers receiving medical, pharmaceutical or dental
39 services, mental health services, or residential real estate brokering
40 services from the reporting individual or [~~his or her~~ ~~their~~ firm or if
41 federal law prohibits or limits disclosure. The reporting individual
42 need not identify any client to whom [~~he or she~~ ~~they~~ or [~~his or her~~
43 ~~their~~ firm provided legal representation with respect to investigation
44 or prosecution by law enforcement authorities, bankruptcy, family court,
45 estate planning, or domestic relations matters, nor shall the reporting
46 individual identify individuals represented pursuant to an insurance
47 policy but the reporting individual shall in such circumstances only
48 report the entity that provides compensation to the reporting individ-
49 ual; with respect to matters in which the client's name is required by
50 law to be kept confidential (such as matters governed by the family
51 court act) or in matters in which the reporting individual represents or
52 provides services to minors, the client's name may be replaced with
53 initials. To the extent that the reporting individual, or [~~his or her~~
54 ~~their~~ firm, provided legal representation with respect to an initial
55 public offering, and federal law or regulations restricts the disclosure
56 of information relating to such work, the reporting individual shall (i)

1 disclose the identity of the client and the services provided relating
2 to the initial public offering to the office of court administration,
3 who will maintain such information confidentially in a locked box; and
4 (ii) include in ~~[his or her]~~ their response a statement that pursuant to
5 this paragraph, a disclosure to the office of court administration has
6 been made. Upon such time that the disclosure of information maintained
7 in the locked box is no longer restricted by federal law or regulation,
8 the reporting individual shall disclose such information in an amended
9 disclosure statement in response to the disclosure requirements of this
10 paragraph. The office of court administration shall develop and main-
11 tain a secure portal through which information submitted to it pursuant
12 to this paragraph can be safely and confidentially stored. With respect
13 to clients represented in other matters not otherwise exempt, the
14 reporting individual may request an exemption to publicly disclosing the
15 name of that client from the commission on ethics and lobbying in
16 government pursuant to section ninety-four of the executive law, or from
17 the office of court administration. In such application, the reporting
18 individual shall state the following: "My client is not currently
19 receiving my services or seeking my services in connection with:

20 (i) A proposed bill or resolution in the senate or assembly during the
21 reporting period;

22 (ii) A contract in an amount totaling \$10,000 or more from the state
23 or any state agency for services, materials, or property;

24 (iii) A grant of \$10,000 or more from the state or any state agency
25 during the reporting period;

26 (iv) A grant obtained through a legislative initiative during the
27 reporting period; or

28 (v) A case, proceeding, application or other matter that is not a
29 ministerial matter before a state agency during the reporting period."

30 In reviewing the request for an exemption, the commission on ethics
31 and lobbying in government or the office of court administration may
32 consult with bar or other professional associations and the legislative
33 ethics commission for individuals subject to its jurisdiction and may
34 consider the rules of professional conduct. In making its determination,
35 the commission on ethics and lobbying in government or the office of
36 court administration shall conduct its own inquiry and shall consider
37 factors including, but not limited to: (i) the nature and the size of
38 the client; (ii) whether the client has any business before the state;
39 and if so, how significant the business is; and whether the client has
40 any particularized interest in pending legislation and if so how signif-
41 icant the interest is; (iii) whether disclosure may reveal trade
42 secrets; (iv) whether disclosure could reasonably result in retaliation
43 against the client; (v) whether disclosure may cause undue harm to the
44 client; (vi) whether disclosure may result in undue harm to the attor-
45 ney-client relationship; and (vii) whether disclosure may result in an
46 unnecessary invasion of privacy to the client.

47 The commission on ethics and lobbying in government or, as the case
48 may be, the office of court administration shall promptly make a final
49 determination in response to such request, which shall include an expla-
50 nation for its determination. The office of court administration shall
51 issue its final determination within three days of receiving the
52 request. Notwithstanding any other provision of law or any professional
53 disciplinary rule to the contrary, the disclosure of the identity of any
54 client or customer in response to this question shall not constitute
55 professional misconduct or a ground for disciplinary action of any kind,
56 or form the basis for any civil or criminal cause of action or proceed-

ing. A reporting individual who first enters public office after December thirty-first, two thousand fifteen, need not report clients or customers with respect to matters for which the reporting individual or ~~his or her~~ their firm was retained prior to entering public office.

Client	Name of Lobbyist	Description of Matter	Category of Amount (in Table 1)
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(d) List the name, principal address and general description or the nature of the business activity of any entity in which the reporting individual or such individual's spouse or domestic partner had an investment in excess of \$1,000 excluding investments in securities and interests in real property.

§ 5. Subparagraph (c) of paragraph 16-a of subdivision 3 of section 73-a of the public officers law, as added by chapter 591 of the laws of 2023, is amended to read as follows:

(c) "Distributed ledger or blockchain technology" shall mean a ledger or database that stores shared state by maintaining it across a multiplicity of devices belonging to different entities and securing it through a combination of cryptographic and consensus protocols, where the shared state serves to authenticate, record, share, and/or synchronize transactions involving digital assets or virtual currencies.

Self/ Spouse or Domestic Partner	[Type of Digital Asset] <u>Name</u>	Category of Market Value as of the close of the taxable year last occurring prior to the filing of this statement (In Table II)
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§ 6. This act shall take effect on the first of January next succeeding the date on which it shall have become a law.